

Urgent

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN

CASE NO: _____

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD

(Contracting Employer — signatory to the Applicant's employment contract)

First Respondent

and

MEDSCHEME HOLDINGS (PTY) LTD

(Registration Number: 1983/003221/07)

(Operational entity and payroll administrator — entity that processed the unlawful deduction)

Second Respondent

and

AFROCENTRIC INVESTMENT CORPORATION LIMITED

(Registration Number: 1988/000570/06)

(JSE: ACT) — Ultimate holding company and group employer

Third Respondent

NOTICE OF MOTION

**(APPLICATION FOR REPAYMENT OF UNLAWFULLY RECOVERED
REMUNERATION)**

BCEA S34(1) AND S34(2) — IN TERMS OF S77A OF THE BCEA

TAKE NOTICE THAT the Applicant intends to make application to this Honourable Court, on a date and time to be allocated by the Registrar, for an order in the following terms:

1. DECLARATORY RELIEF

1.1 DECLARING that the recovery of R14,811.77 processed against the Applicant's remuneration on 23 July 2025 — coded as 'Unpaid Leave Recovery' (R13,824.32) and 'Unpaid Leave' (R987.45) — constitutes a deduction from remuneration within the meaning of Section 34(1) of the Basic Conditions of Employment Act 75 of 1997 ('BCEA').

1.2 DECLARING that the said deduction was made without the Applicant's prior written consent and without authorisation by any court order, arbitration award, collective agreement, or law, and is therefore unlawful.

1.3 DECLARING that the deduction exceeded 25% of the Applicant's gross remuneration in a single pay cycle, in further breach of Section 34(2) of the BCEA and the Respondents' own HCBP Policy.

2. PAYMENT ORDER

2.1 ORDERING the First, Second, and Third Respondents, jointly and severally, the one paying the others to be absolved, to repay the Applicant the sum of R14,811.77 (Fourteen Thousand Eight Hundred and Eleven Rand and Seventy-Seven Cents) within 7 (seven) days of the date of this Order.

2.2 SOLATIUUM: ORDERING the First, Second, and Third Respondents, jointly and severally, the one paying the others to be absolved, to pay the Applicant the sum of R50,000.00 (Fifty Thousand Rand) as solatium for injury to dignity, psychological harm, and distress directly caused by the unlawful deduction and the Respondents' bad faith conduct, having regard to:

- (i) the magnitude of the breach (40.47% — nearly double the statutory cap);

- (ii) the Applicant's documented psychiatric disability known to the Respondents at the time of the deduction;
- (iii) the financial devastation caused (forced retirement fund withdrawal, eviction notices, destitution, SANC deregistration, and loss of career advancement);
- (iv) the failure to consult despite the Respondents' own HCBP Policy;
- (v) the written misrepresentation regarding salary staggering;
- (vi) the false sworn statement dismissing severe mental illness as an "excuse"; and
- (vii) the post-resignation statutory breaches — including UIF non-remittance (Annexure I and J) and Certificate of Service misrepresentation (Annexure K) — demonstrating ongoing institutional bad faith;

2.3 URGENT INTERIM RELIEF: Pending the final determination of this application, ORDERING the Respondents jointly and severally to pay the Applicant interim relief in the sum of R14,811.77 (Fourteen Thousand Eight Hundred and Eleven Rand and Seventy-Seven Cents) within 72 (seventy-two) hours of service of this Notice, to be set off against any final award granted in these proceedings, on the grounds that:

- (i) The Applicant has not paid rent since November 2025 (four months arrears) and has been verbally warned by the landlord that eviction is imminent;
- (ii) The Applicant currently has no running water at the residence and is struggling to maintain electricity supply, rendering the premises uninhabitable;
- (iii) The Applicant is destitute with no income, no savings, and no access to credit or UIF benefits (June 2025 UIF contribution not remitted by Respondents — Annexures I and J);
- (iv) The Applicant has established a prima facie right: documentary evidence demonstrates a clear BCEA s34(2) breach (40.47% deduction exceeding 25% cap — Annexure A; employer's own policy requiring consultation and capping at 25% — Annexure B; psychiatrist's warning ignored — Annexure H);
- (v) The Applicant will suffer irreparable harm if interim relief is denied: eviction will render the Applicant homeless and unable to participate in these proceedings or

in nine concurrent regulatory proceedings (JSE, SAHRC, CMS, FSCA, B-BBEE Commission, DEL, SANC, SAPC, Labour Court);

(vi) The balance of convenience overwhelmingly favors interim relief: R14,811.77 is administratively insignificant to a JSE-listed group but represents the difference between housing and homelessness for the Applicant;

(vii) The Applicant has no alternative remedy: disclosed debt spiral to employer's senior HR representative in writing on 11 November 2025 ("forcing me to incur additional debt" — Annexure D) and verbally in Teams meeting on 12 November 2025 (salary going to loan sharks, continuous borrowing cycle) — employer took no remedial action; and

(viii) Urgency is established: ordinary timelines (10 days + 15 days + hearing date) would result in eviction end of March 2026 before any hearing occurs, rendering the final relief ineffective.

3. INTEREST

3.1 INTEREST: ORDERING the Respondents jointly and severally to pay interest on the sums awarded under paragraphs 2.1, 2.2, and 2.3 above at the prescribed legal rate calculated from 23 July 2025 to the date of final payment, with the interim payment under paragraph 2.3 to be set off against the final amounts awarded;

4. COSTS

4.1 ORDERING the Respondents jointly and severally to pay the costs of this application on a punitive scale, having regard to:

- (a) The deliberate misrepresentation by the Second Respondent's manager that the group does not permit staggered debt recovery, when the Respondents' own Ill-Health and Incapacity Policy expressly requires prior HCBP consultation and staggered arrangements;
- (b) The Respondents' HCBP failure to consult with the Applicant before making the deduction, in breach of their own Policy;
- (c) The Respondents' prior written notice from the Applicant's treating specialist psychiatrist, Dr Jacques Malan (FCPSYCH(SA)), that the Applicant was at risk

and required urgent re-admission — notice which the Respondents held before making the deduction and ignored entirely;

- (d) The institutional bad faith demonstrated by the Respondents' group HR representative in sworn proceedings before the CCMA, in which the Applicant's specialist-diagnosed psychiatric disability was characterised as a cynical excuse; and
- (e) The ongoing post-resignation statutory bad faith evidenced by the false UIF compliance representation of 19 January 2026 (Annexures I and J) and the misrepresentation on the Certificate of Service tailored to align with litigation pleadings (Annexure K).
- (f) The Respondents were expressly informed by the Applicant in writing on 11 November 2025 that the unlawful deduction had “forced me to incur additional debt” (Annexure D), and were informed in greater detail in a Teams meeting on 12 November 2025 that the Applicant’s salary was going straight to loan sharks and the Applicant was trapped in a continuous borrowing cycle — yet the Respondents took no remedial action, offered no assistance, and one month later filed a defamatory affidavit dismissing the Applicant’s psychiatric condition as a “cynical excuse” while the Applicant was fighting for survival in the debt spiral the Respondents had caused.

5. RESERVATION OF RIGHTS

5.1 DIRECTING that the relief granted herein is without prejudice to the Applicant's rights to pursue further relief against all three Respondents, including constructive dismissal, unfair labour practice, class action, Employment Equity Act disability discrimination claims, UICA non-remittance claims, and all further claims under separate proceedings.

6. FURTHER AND/OR ALTERNATIVE RELIEF

TAKE NOTICE FURTHER that the Founding Affidavit of WILBUR WILLIAM MATTHEE, annexed hereto together with **Annexures A to K**, will be used in support of this application.

The Founding Affidavit and annexures establish the following core facts:

- (a) The Applicant's signed employment contract is with the First Respondent (Annexure G);

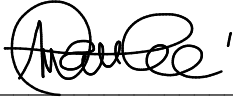
- (b) The unlawful deduction of R14,811.77 was processed by the Second Respondent on 23 July 2025 without written consent (Annexure A — payslip);
- (c) The deduction exceeded the 25% statutory and policy cap (Annexure A and Annexure B — HCBP Policy);
- (d) The Respondents' manager misrepresented the staggering policy in writing (Annexure C);
- (e) No consultation was conducted despite the Applicant's request and the employer's own policy obligation (Annexures B and D);
- (f) The Third Respondent directly exercised employer functions over the Applicant (Annexures E and F);
- (g) The employer had prior written notice from a specialist psychiatrist of the Applicant's condition and vulnerability before making the deduction (Annexure H);
- (h) The Respondents' group HR representative made a sworn statement in CCMA proceedings dismissing the Applicant's specialist-diagnosed psychiatric condition, without any medical qualifications to do so;
- (i) Following termination, the Respondents failed to remit the UIF contribution deducted from the Applicant's June 2025 salary, and on 19 January 2026 made a false written representation that compliance had been achieved — disproved by the official uFiling portal across four subsequent verification dates (Annexures I and J);
- (j) The Respondents issued a Certificate of Service on 19 January 2026 bearing a designation aligned with their CCMA litigation affidavit rather than the Applicant's official employment records and email signature, constituting a statutory misrepresentation on a document required for UIF and professional registration purposes; and a recording of the Naming Convention Teams meeting — held in the Respondents' possession and formally requested in terms of Rule 6(7) of the Labour Court Rules — has not been disclosed, warranting an adverse inference (Annexure K).

TAKE NOTICE FURTHER that if any Respondent intends to oppose this application, it must:

- (a) Deliver a Notice of Intention to Oppose within 10 (ten) days of receipt of this Notice;

- (b) Deliver an Answering Affidavit within 15 (fifteen) days thereafter; and
- (c) Appoint an address within 15 kilometres of the office of the Registrar of this Court at which it will accept notice and service of all documents in these proceedings.

DATED at CAPE TOWN on this 5th day of MARCH 2026.



WILBUR WILLIAM MATTHEE

Applicant in Person

Email: info@ethichawks.co.za | wilburmat@gmail.com

Tel: 069 635 1435 / 063 378 8782

Address: 15 Bellevue Street, Voorbrug, Cape Town, 7100

TO:

THE REGISTRAR OF THE LABOUR COURT

Cape Town

AND TO:

AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

37 Conrad Street, Florida Glen, Roodepoort, 1709

(Email)

AND TO:

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent

The Boulevard Office Park, Corner Searle and Pontac Streets, Woodstock, Cape Town, 7925

(Email)

AND TO:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Third Respondent

37 Conrad Street, Florida Glen, Roodepoort, 1709

Attention: LSM Mpumlwana (Group Company Secretary)

(Email)

ANNEXURES TO THE FOUNDING AFFIDAVIT (A – K):

Annexure A – Payslip July 2025 (Medscheme Holdings (Pty) Ltd)

Annexure B – HCBP Policy Screenshot (24 July 2025) — AfroCentric Group Policy — 25% cap and consultation obligation

Annexure C – Meeting Feedback Email from Manager (16 April 2025) — misrepresentation of staggering policy

Annexure D – Salary Dispute Email Chain with Cheryl-Dawn Modern, AfroCentric Group HR (11–12 November 2025)

Annexure E – AfroCentric Group CTC Package Document (Wilbur Matthee) — Third Respondent employer function

Annexure F – Annual Salary Increase Letter signed by Gerald Van Wyk, CEO AfroCentric (21 April 2025)

Annexure G – Signed Employment Contract, AfroCentric Health (RF) (Pty) Ltd (09 April 2024 / signed 18 April 2024)

Annexure H – Letter from Dr Jacques Malan, Specialist Psychiatrist FCPSYCH(SA), to Employer (15 May 2025)

Annexure I – UIF Non-Remittance Email Chain (15–19 January 2026) — **Respondents' false compliance representation of 19 January 2026**

Annexure J – uFiling Portal Screenshots showing 'No Information' for June 2025 (14 January 2026, 10 February, 16 February, 20 February, 23 February 2026) — **false employer representation disproved**

Annexure K – Certificate of Service Misrepresentation Email Chain (19 January 2026) including formal request for the Naming Convention recording in terms of Rule 6(7) — **no response received**